



Administrative Appeals Tribunal

General Division

Our Ref: 2023/5801

Contact Officer: Kira A

9 August 2023

Richard William McLean
8 goldlang street
dandenong VIC 3175

Dear Dr McLean

APPLICANT: Richard William McLean
RESPONDENT: Decision Maker

We have received your application for review of the decision made by the Victorian Ombudsman. You are asking us to review a decision about a complaint about the Werribee Mercy Hospital and the Mental Health Complaints Commissioner.

Can we review this decision?

We can only review this decision if a Commonwealth law says that we can.

The decision you are asking us to review has not been made under a Commonwealth law.

It therefore seems that we cannot review your decision.

What happens next?

If you think we can review your decision, please contact us within 14 days after receiving this letter and tell us why.

If you cannot show that we can review the decision, we can dismiss your application. This means we will not review it.

We might hold a hearing to decide if we can review your decision. If we hold a hearing, we will let you know the date and time and where it will be. You can represent yourself at the hearing or arrange for someone else to represent you.

Why do we collect information and what do we do with it?

We collect information from you to process and consider your application under the *Administrative Appeals Tribunal Act 1975*.

If we decide to hold a hearing, we will give information about your application to the respondent.

Limited information about a case is usually made available to the public on request and can be accessed using *eCase Search* on our website. This information includes

the names of the parties and any representatives, the type of application, dates of case events, the types of key documents given to us and the outcome of the application. Information about a case is usually first made available on *eCase Search* 7 days after we receive the application.

More information is usually made publicly available if we hold a hearing and make a decision in the case. Our hearings are usually open to the public, and most of our decisions are published on the internet.

We can order that information be kept confidential if we believe there is good reason to do so. You can apply for an order by writing to us stating what you want kept confidential and why. In some cases, legislation requires that information be kept confidential.

For more information, see our fact sheet *Privacy and confidentiality at the AAT* and our Privacy Policy. Our Privacy Policy tells you how you can access and seek correction of personal information we hold about you, how to make a complaint about the way we have handled your personal information and how we will deal with such a complaint.

The fact sheet and Privacy Policy are on our website, or ask us and we will send them to you.

Do you want to know more?

More information about us and how we conduct reviews is on our website (www.aat.gov.au).

If you need more information or assistance, call us on **1800 228 333**.*

Yours sincerely

Kira A
For the Registrar

Telephone: (03) 9454 6100
Email: melbourne.registry@aat.gov.au

* You will be connected to the AAT office in your capital city. Residents of northern NSW (postcodes 2460–2490) will be connected to the Brisbane office and residents of the Northern Territory will be connected to the Adelaide office. Calls from landlines are free. You may be charged for calls from mobile phones or payphones.